

Tentative Rulings for August 12, 2026

Department 7

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 7 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 766 6465**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2403978	SCOTT vs LOCALS PUBLIC HOUSE, INC.	MOTION TO COMPEL

Tentative Ruling:

Defendant's Motion to Compel is granted. Plaintiff Jeffrey Scott is ordered to appear for and complete the continued (Volume II) session of his deposition within 20 days of this order.

Sanctions is denied.

Under CCP § 2025.450(b)(2), a motion to compel deposition must be “accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents . . . described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.” (CCP § 2025.450(b)(2).) A declaration under section 2016.040 requires the moving party to “state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (CCP § 2016.040(a).)

On June 29, 2026, Defendant's counsel sent Plaintiff's counsel a meet-and-confer letter regarding completion of the deposition and enclosed a deposition notice setting the continued session. (Zoreikat Decl. ¶ 10, Ex. C.) The parties then exchanged further meet-and-confer correspondence on June 29 and 30, 2026, but Plaintiff's counsel refused to produce Plaintiff for completion of the deposition, asserting that the deposition was “completed.” (*Id.* at ¶ 11, Ex. D.) On June 30, 2026, Defendant filed the instant motion to compel Plaintiff's deposition. Although the parties engaged efforts to resolve the dispute, they did not meet and confer in person, by telephone, or by videoconference as expressly required by section 2016.040(a).

LEGAL STANDARD

A party may move to compel a deponent's attendance, testimony, and production of documents where, after service of a deposition notice, “a party to the action . . . , without having served a valid objection . . . , fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice.” (CCP § 2025.450(a).) The motion must “set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” (CCP § 2025.450(b)(1).)

“[A] deposition examination of the witness by all counsel, other than the witness' counsel of record, shall be limited to seven hours of total testimony. The court shall allow additional time, beyond any limits imposed by this section, if needed to fairly examine the deponent or if the deponent, another person, or any other circumstance impedes or delays the examination.” (CCP § 2025.290(a).)

“The deposition officer may not suspend the taking of testimony without the stipulation of all parties present unless any party attending the deposition, including the deponent, demands that the deposition officer suspend taking the testimony to enable that party or deponent to move for a protective order under Section 2025.420 on the ground that the examination is being conducted in bad faith or in a manner that unreasonably annoys, embarrasses, or oppresses that deponent or party.” (CCP § 2025.470.)

“Once any party has taken the deposition of any natural person, including that of a party to the action, neither the party who gave, nor any other party who has been served with a deposition notice pursuant to Section 2025.240 may take a subsequent deposition of that deponent.” (CCP § 2025.610(a).) “Notwithstanding subdivision (a), for good cause shown, the court may grant leave to take a subsequent deposition, and the parties, with the consent of any deponent who is not a party, may stipulate that a subsequent deposition be taken.” (CCP § 2025.610(b).)

MERITS

Defendant moves to compel Plaintiff to appear for a continued (Volume II) deposition. The motion presents three issues: (1) whether the June 25, 2026 deposition was “completed” such that any further examination would constitute a prohibited “subsequent” deposition under CCP § 2025.610; (2) whether Defendant violated section 2025.470 by relieving the reporter without stipulation; and (3) whether section 2025.290’s seven-hour cap entitles Defendant to complete its examination. The Court addresses each in turn.

“Completion” of the June 25, 2026 Deposition

The threshold question is whether Plaintiff’s deposition was concluded on June 25, 2026, such that any further examination would constitute a “subsequent” deposition requiring leave of court under section 2025.610, or whether the June 25 session was merely interrupted and remains open for completion. The record reflects that the parties went on the record at approximately 10:08 a.m. and off the record at approximately 6:03 p.m., with the reporter departing for a previously scheduled commitment before Defendant finished its examination. (Zoreikat Decl. ¶¶ 3–6, Ex. B.) Defendant’s counsel represents that she did not terminate the deposition but rather relieved the reporter and reserved the right to continue, with approximately one hour of examination remaining. (*Id.* at ¶ 7, Ex. B.) Plaintiff’s counsel disputes this characterization and asserts that no consent was given to a continued session.

Court finds that the deposition was not “completed” in the ordinary sense. The record shows that Defendant’s examination-in-chief had not concluded and that Defendant’s counsel expressly preserved the right to continue the examination. (*Id.*) A deposition that ends before the examining party has completed its examination, for reasons attributable to a scheduling conflict of the deposition officer rather than the party or deponent, is more properly characterized as an interrupted deposition than a completed one. Section 2025.610’s bar on “subsequent” depositions is therefore not squarely implicated. Even if it were, section 2025.610(b) permits the Court to grant leave for good

cause, which is present here where Defendant's examination was cut short through no fault of its own.

Violation of CCP § 2025.470

Plaintiff contends that Defendant violated section 2025.470 by "suspending" the deposition when the reporter departed without stipulation. Section 2025.470 provides that "[t]he deposition officer may not suspend the taking of testimony without the stipulation of all parties present" except where a party demands suspension to move for a protective order under section 2025.420. (CCP § 2025.470.) By its terms, section 2025.470 is directed at the conduct of the "deposition officer," in this case, the certified shorthand reporter, not to a party's decision to relieve a reporter who has a conflicting commitment, and it contemplates suspension for the purpose of a protective order motion, not the reporter's departure to attend a previously scheduled obligation. Nothing in the record indicates that the reporter suspended testimony over any party's objection. Rather, the reporter advised the parties that she needed to leave, and testimony ceased when she departed. Section 2025.470 does not, on its face, address that circumstance. Accordingly, section 2025.470 does not bar completion of the deposition.

The seven hour cap under CCP § 2025.290

CCP § 2025.290(a) limits deposition examination by all counsel (other than the witness's counsel of record) to "seven hours of total testimony," but expressly directs the Court to "allow additional time . . . if needed to fairly examine the deponent or if the deponent, another person, or any other circumstance impedes or delays the examination." (CCP § 2025.290(a).) The statute measures actual testimony, not elapsed calendar time, and it contemplates additional time where circumstances beyond the examining party's control impede the examination. Here, the reporter's mid-examination departure is precisely the kind of "other circumstance" that impedes examination within the meaning of section 2025.290(a). Defendant is therefore entitled to complete its examination within the statute's seven-hour cap of actual testimony, and the Court may allow additional time as needed.

As to Plaintiff's related contention that Defendant waived the remaining examination time by declining to secure a backup reporter, Plaintiff has not identified, and the Court is not aware of, any provision of the Discovery Act that requires the noticing party to procure a substitute certified shorthand reporter mid-deposition.

Document-related issues

Plaintiff contends that further examination regarding the notebook of job proposals, tax returns, and bank statements is moot because Plaintiff is withdrawing all wage loss and lost earning capacity claims. According to Defendant, however, this position has been communicated informally through counsel and has not been memorialized by a binding stipulation, amended discovery responses, or a dismissal of the relevant damages allegations. (See Def.'s Reply 5:10–15.) Until Plaintiff's withdrawal is formalized, the document requests remain live, and Defendant is entitled to examine Plaintiff on the responsive documents identified during the June 25 session. Moreover, Defendant

represents that other areas of examination remain independent of the wage loss documents.

SANCTIONS

If a motion to compel deposition is granted, the Court “shall impose a monetary sanction . . . in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP § 2025.450(g)(1).)

Here, the Court finds sanctions unwarranted. As discussed above, Defendant’s meet-and-confer efforts consisted exclusively of written correspondence and did not satisfy the requirements of section 2016.040(a). In addition, the parties’ dispute over whether the June 25 session was “completed,” and whether relieving the reporter without securing a backup constituted a “suspension,” though ultimately unpersuasive, is not frivolous. Thus, Plaintiff’s opposition to the motion appears to have been substantially justified within the meaning of section 2025.450(g)(1).

2.

CASE #	CASE NAME	HEARING NAME
CVRI2404809	OGDEN vs FCA US, LLC.	MOTION TO BE RELIEVED AS COUNSEL FOR RYAN J OGDEN

Tentative Ruling: Appearances required.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2504852	THOMAS vs SHI	JOINDER TO MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Defendant Shi’s Motion for joinder is denied.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2504852	THOMAS vs SHI	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Defendant Uber’s Motion to Compel Arbitration is denied.

The court should declines to rule on all evidentiary objections as immaterial to the court’s determination on this motion.

Upon the motion of a party to an agreement to arbitrate, the court must grant a petition to compel arbitration unless it finds: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP § 1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) The motion to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (CRC 3.1330; *see also Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218-19.)

“In ruling on a petition to compel arbitration, the trial court may consider evidence on factual issues relating to the threshold issue of arbitrability...Parties may submit declarations when factual issues are tendered with a motion to compel arbitration.” (*Engineers & Architects Assn. v. Community Development Dept.* (1994) 30 Cal.App.4th 644, 653.) In the summary proceedings on a motion to compel arbitration, “the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.)

The FAA Applies

Uber contends that the FAA, 9 U.S.C. §§ 1 et. seq., applies. The FAA generally governs arbitration in written contracts involving interstate commerce. (9 U.S.C. § 2.) To assure uniform results as to arbitrability of disputes subject to the FAA, conflicting state law is preempted under the Supremacy Clause. (*Southland v. Corp. v. Keating* (1984) 465 U.S. 1, 12.) The party claiming that the FAA applies has the burden of proving that the underlying transaction involved interstate commerce. (*Woolfs v. Sup. Ct. (Turner)* (2005) 127 Cal.App.4th 197, 211-214.) Furthermore, the FAA applies when an arbitration agreement expressly states that it is governed by the FAA. (*Aviation Data, Inc. v. Am. Express Travel Related Servs. Co., Inc.* (2007) 152 Cal.App.4th 1522, 1534-1535; *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355.)

Here, the arbitration agreement states it is governed by the FAA. (Declaration of Jacqueline Pare, Exhibit G, § 2(c).)

Existence of an Arbitration Agreement

The FAA requires the existence of a valid arbitration agreement before arbitration can be compelled. (9 U.S.C. § 2.) Under the FAA, courts apply California contract law to determine whether the parties formed a valid agreement to arbitrate their dispute. (*Avery v. Integrated Healthcare Holdings, Inc.* (2013) 218 Cal.App.4th 50, 59-60.) “Under both federal and California law, arbitration agreements are valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.” (*Armendariz v. Foundation Health Psychcare Services* (2000) 24

Cal.4th 83, 98; see 9 U.S.C. § 2 and CCP § 1281.2) Similar to California law, any doubt about the arbitration of a dispute under the FAA is resolved in favor of arbitration. (*AT&T Technologies, Inc. v. Communications Workers of America* (1986) 475 U.S. 643, 650.) Generally, the party seeking arbitration is only required to attach a copy of the arbitration agreement purportedly bearing the opposing party's signature, and does not need to follow the normal rules of authentication. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755.) As explained by one court: "Properly understood, *Condee* holds that a petitioner is not required to authenticate an opposing party's signature on an arbitration agreement as a preliminary matter in moving for arbitration or in the event the authenticity of the signature is not challenged." (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846.)

But the issue here is not the authenticity of Plaintiff's signature or the document itself. Instead, the issue is Uber fails to attach a copy of an arbitration agreement that applies to the dispute at issue at all. Importantly, the moving party must prove by a preponderance of evidence the existence of the arbitration agreement and that the dispute is covered by the agreement. (See *Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396-397; see also *Graphic Arts Internat. Union v. Oakland Nat. Engraving Co.* (1986) 185 Cal.App.3d 775, 780 ["...we conclude that while the trial court must not decide the merits of an alleged controversy when ruling upon a petition to compel arbitration, it must nevertheless determine the threshold question of whether the petition adequately alleges facts demonstrating the existence of an arbitrable controversy."].)

The issue is not one of evidentiary support or authentication of a signature, as examined in *Condee* or *Ruiz*, *supra*, or *Espejo v. Southern California Permanente Medical Group* (2016) 246, Cal.App.4th 1047, cited by Uber in their reply. While Uber's initial burden is low, they must attach a copy of an arbitration agreement that concerns the controversy at issue in the case. It is only once the court determines the agreement to arbitrate exists, should it *then* decide the other objections to its enforceability. (*Condee*, *supra*, v. 88 Cal. App. 4th at 219.) Stated differently, it is the trial court's duty to determine whether there is an arbitrable controversy as a threshold question. (*John Wiley & Sons v. Livingston* (1964) 376 U.S. 543, 546-547.)

Here, the arbitration clause expressly covers any legal dispute arising out of or related to Plaintiff's relationship with Uber, including "incidents or accidents resulting in personal injury to you that you allege occurred in connection *with your use of the Services*." (Declaration of Jacqueline Pare, Exhibit G, § 2(a); emphasis added.) The initial paragraph of the agreement makes it clear that the agreement governs, "...access or use by you....of applications, websites, content, products, and services made available...by [Uber]..." (*Id.* at § 1.)

Uber claims Plaintiff was a passenger in Shi's vehicle, but the complaint alleges: "Defendants, and each of them, so negligently, unlawfully, and dangerously drove, operated, owned, maintained, and entrusted their vehicle so as to cause it to collide with the vehicle in which Plaintiff was a backseat passenger." (Complaint, p. 1.) The complaint alleges Shi was actively using the Uber Driver App. (*Id.*) It does not allege that Plaintiff was a passenger in said vehicle. Uber cites to the complaint in its reply in arguing that the complaint does allege Plaintiff was a passenger in Shi's vehicle, but the

citation again only states that Shi was the only “actively” using the application to pick up and transport “passengers” – not Plaintiff. (See Uber’s Reply, p. 2:17-21.) Uber does not provide any evidence of Plaintiff requesting a ride on the date of the incident or otherwise being a passenger in Shi’s vehicle and Uber otherwise fails to establish the existence of an arbitrable controversy.

The issues of delegation, consent, or unconscionability are not reached because Uber fails to meet its initial burden to establish the existence of an applicable arbitration agreement.

5.

CASE #	CASE NAME	HEARING NAME
UDCO2600405	AMFP VII ESPLANADE LLC vs GOMEZ	MOTION FOR SUMMARY JUDGMENT ON UNLAWFUL DETAINER

Tentative Ruling:

Plaintiff AMFP VII Esplanade LLC’s Motion for Summary Judgment is denied.

Trial is set for 8/28/26; Trial Readiness Conference is set for 8/21/26.

From commencement to conclusion, the party moving for summary judgment bears the burden of persuasion. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 855.) When a plaintiff is the moving party, the plaintiff has the burden to produce admissible evidence on each element of a cause of action entitling him to judgment. (Code Civ. Proc., § 437c(p)(1).) The plaintiff does not have the burden to disprove affirmative defenses. (*Id.*) At that point, the burden shifts to the defendant to show that a triable issue exists. (*Id.*)

“An action for unlawful detainer is a summary proceeding. [Citation] The statutory scheme is intended and designed to provide an expeditious remedy for the recovery of possession of real property. [Citation.] Unlawful detainer actions are, accordingly, of limited scope, generally dealing only with the issue of right to possession and not other claims between the parties, even if related to the property.” (65283 *Two Bunch Palms Building, LLC v. Coastal Harvest II, LLC* (2023) 91 Cal.App.5th 162, 167.) In an unlawful detainer action, the plaintiff has the initial burden of proof as to all essential elements of the prima facie case. Thus, the landlord in an unlawful detainer has the burden of proving, at a minimum, the existence of the landlord-tenant relationship, termination of that relationship, and the tenant’s continued possession of the premises. (*Ahlens v. Barrett* (1906) 4 Cal.App. 158, 160.)

Notice

Unlawful detainer actions are authorized and governed by statute, which is strictly construed. (See Code Civ. Proc. § 1161 *et seq.*; *U.S. Financial, L.P. v. McLitus* (2016) 6 Cal.App.5th Supp. 1, 3.) “The statutory scheme is intended and designed to provide an

expeditious remedy for the recovery of possession of real property.” (*Taylor v. Nu Digital Marketing, Inc.* (2016) 245 Cal.App.4th 283, 288 [internal quotation marks omitted].)

“Section 1161(2) provides that a tenant is guilty of unlawful detainer when the tenant continues in possession of a rental property without the permission of the landlord after default in the payment of rent.” (*City of Alameda v. Sheehan* (2024) 105 Cal.App.5th 68, 75.) There is no dispute as to Defendant’s possession. The issue presented in this motion is notice.

“Proper service on the lessee of a valid three-day notice to pay rent or quit is an essential prerequisite to a judgment declaring a lessor’s right to possession under section 1161, subdivision 2.” (*Liebovich v. Shahrokhkhany* (1997) 56 Cal.App.4th 511, 513.) “If the landlord does not strictly comply with the requirements for a three-day notice, the landlord cannot prevail in an unlawful detainer action....” (*Eshagian v. Cepeda* (2025) 112 Cal.App.5th 433, 458.) Section 1161(2) requires a written notice; the amount of rent (and no more) due; the name, telephone number and address to whom the rent payment is to be made; and, if payment may be made personally, the usual days and hours the person will be able to receive the payments. For example, in *Eshagian*, the court found the notice deficient because 1) despite titled “3 Day Notice to Pay or Quit” it did not state the landlord would repossess the premises if the tenant did not pay rent prior to the expiration of the three day notice period; 2) the notice did not state when the notice period commenced or ended, nor that the three day period excluded weekends and judicial holidays; and 3) the notice did not provide the address where the rent could be paid. (*Eshagian*, supra, 112 Cal.App.5th at 459.) In *City of Alameda*, supra, 105 Cal.App.5th at 81-82, the failure to include the complete and accurate name of the corporation to whom rent should be paid rendered the notice defective.

According to both the complaint and the rental agreement, the monthly rent was \$2,563.00. (Complaint ¶6(a); Motion, Ex. 1.) The complaint and motion attach a 2 page 3 day notice, while Defendant provides a three page notice. The first two pages are part of a document titled: “CARES Act Covered Property Notice to Pay Rent or Surrender Possession.” It indicates that unpaid rent for 2/1/26 in the amount of \$2,563 was owed. It included the statutory language and was dated 2/10/26. However, the first day is excluded, and the last is included, unless the last day is a holiday, which is also excluded. (Code Civ. Proc. § 12.) Thus, the notice period began February 11, but the 12th (Thursday) was a judicial holiday, the 13th (Friday) is the second day, the 14th-15th are Saturday and Sunday, and the 16th (Monday) was a judicial holiday. Thus, the notice period expired February 17.

On the third page which Defendant included, it is titled “Notice to Pay Rent or Surrender Possession”, which identified how payment could be delivered. However, it states in bold “Notice Expires on 2/14/26 by 5 p.m.” (Oppo., p. 139/143.) Thus, Plaintiff gave an incorrect expiration date as it included judicial holidays and the weekend.

Furthermore, under section 1161(2), the name of the person to whom payment can be delivered to, and the usual hours are to be included. Page 2 of the notice identifies

Crystal Parizo, and indicates payment may be made 10 am to 6 pm. However, page 3 of the notice indicates that Kyesha Hoy or any available person between the hours of 8 am to 5pm. These discrepancies demonstrate that there is a triable issue of fact as to a defective 3 day notice. Accordingly, the motion is denied. The court need not address the affirmative defenses raised in the motion as they are not dispositive to the motion.